

Bid Inquiry Contracting Officers Report All Inquiries

Project: NSA-U Consolidation - Facility Admin, SCIF, Commons Facility, Mission Facility, Parking Structure and VCP-VCIF

Review: NSA-U Industry Day (00001)

(sorted by CommentID)

Displaying 5 inquiries.

Id	Discipline	Sheet	Detail	Spec
11670994	Contracting	n/a		n/a
Comment Classification: UNCLASSIFIED (U)				
Issuance of a draft RFP is requested detailing the Phase One evaluation factors so that the relevant experience criteria and past performance submission requirements are defined which will assist in the formation of design/subcontractor team arrangements.				
By: Stuart Bryant; Archer Western Contractors; (312-563-5402). On: Jan 16 2026.  Forward request by email.				
1-0	Evaluation Concurred. Draft Phase I RFP is not available at this time. The Government has taken this request under consideration. If available, the Draft Phase I RFP will be posted on SAM.gov. By: Daphne Ross; NAU Project Management; (+4961197442064) On: Jan 22 2026			
1-1	Government Response. Draft Phase I RFP is not available at this time. The Government has taken this request under consideration. If available, the Draft Phase I RFP will be posted on SAM.gov. By: Rachel Kinney; SPK Sacramento District; (916-717-7532) On: Jan 22 2026			
	Current Request Status: Request Closed			
Information for this report is procurement sensitive.				
11673189	Contracting	N/A	N/A	N/A
Comment Classification: UNCLASSIFIED (U)				
During the Virtual Industry Day for this project on 14 JAN 2026, feedback was requested by USACE, from industry, for a variety of topics, including Project Labor Agreements. This entry into ProjNet is intended to provide feedback specific to that topic.				
Project Labor Agreements (PLAs) on public or private projects in the geographic area of the project (i.e. Utah and the greater Salt Lake Valley) are rarely, if ever, used or mandated. The lack of implementation of PLAs on projects in this geographic area is directly attributable to the lack of available unionized labor. Specifically, construction labor in Utah has one of the lowest unionization rates in the nation, at 4.1% of the employed workforce. Furthermore, the majority of qualified general contractors and trade subcontractors who would be interested in the subject project (or any similar Federal project), operate as non-union contractors. Therefore, mandating a PLA on the subject project will significantly limit competition by effectively excluding approximately 96% of the available construction labor in the geographic area, and a majority of the qualified general contractors and trade subcontractors who would otherwise be interested in the subject project.				
As recently decided by the United States Court of Federal Claims in the case of Brasfield & Gorrie, LLC v. the United States, "PLA requirements effectively exclude bidders." Accordingly, unless USACE can demonstrate it has affirmatively made "a rational determination a PLA requirement furthers USACE's needs" for a specific project, such exclusion of potential bidders clearly precludes full and open competition under the Competition in Contracting Act (CICA). Accordingly, the Government must show that a PLA requirement would "promote economy and efficiency in accordance with Executive Order 14063" with specific regard to the NSA-U Consolidation Mission Facility. Based on the labor and market conditions in the geographic area of the project, and the demonstrated history of successfully completed projects in the area without a PLA, it is unlikely USACE could demonstrate that a PLA would promote economy and efficiency. By mandating a PLA on the subject project, this intentional limitation on competition by the Government would be in direct violation of the Competition in Contracting Act (CICA), and while not guaranteed, will most certainly result in a bid protest on these grounds.				
By: John Cowan; Hensel Phelps; (4432501498). On: Jan 20 2026.  Forward request by email.				
1-0	Evaluation Concurred. Thank you for the feedback. The Government will continue to monitor court decisions on this topic. By: Daphne Ross; NAU Project Management; (+4961197442064) On: Jan 22 2026			
1-1	Government Response. Thank you for the feedback. The Government will continue to monitor court decisions on this topic. By: Rachel Kinney; SPK Sacramento District; (916-717-7532) On: Jan 22 2026			
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11673191	Contracting	N/A	N/A	N/A
Comment Classification: UNCLASSIFIED (U)				
Historically, USACE-Sacramento District provides heavily bridged and prescriptive design documents with their design-build solicitations, and mostly wants the Offerors to simply "complete" their design. This process and strategy doesn't follow design-build best practices as researched and documented by organizations such as the Design-Build Institute of America, and more				

concerningly, reduces, if not eliminates, the ability for the Offerors design-build teams to respond with the most creative and cost-effective solutions. Other USACE Districts (i.e. Baltimore and Savannah) who have delivered design-build projects for the same end user as the subject project (National Security Agency) have had great success, and realized tremendous cost benefit, of utilizing design-build best practices whereby a detailed program of requirements (performance-based, not prescriptive) is provided, and heavily bridged and prescriptive design documents are avoided. Given the size and complexity of this project, we strongly encourage USACE-Sacramento to consider using design-build best practices which will create a more open and creative competition, in lieu of simply defaulting to heavily bridged and prescriptive design documents as has been historically done on projects at Hill AFB and elsewhere within the District's purview. In the end, we believe this process and strategy will provide the end user with the best project achievable to support their mission.

By: John Cowan; Hensel Phelps; (4432501498). On: Jan 20 2026.  Forward request by email.

1-0 Evaluation Concurred. The plans provided are conceptual and are subject to revisions. Possible changes to the conceptual design must be reviewed and approved prior to implementation. The priority is to meet the Customer's requirements to include schedule. By: Daphne Ross; NAU Project Management; (+4961197442064) On: Jan 22 2026

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Current Request Status: **Request Closed**

Information for this report is procurement sensitive.

11673193	Contracting	N/A	N/A	N/A
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Comment Classification: **UNCLASSIFIED (U)**

At the beginning of the Virtual Industry Day for this project on 14 JAN 2026, USACE stated that all of the slides from the Industry Day would be provided to the attendees. Unfortunately, it was not until the end the Industry Day that this statement was reversed and the attendees were told that the slides would not be provided. As most of the attendees would have likely taken more detailed notes had they been told at the beginning of the Industry Day that the slides would not be provided, we respectfully request that you reconsider this decision and provide what slides you are able to provide, eliminating or redacting any information that is sensitive and cannot be publicly disclosed.

By: John Cowan; Hensel Phelps; (4432501498). On: Jan 20 2026.  Forward request by email.

1-0 Evaluation Concurred. The general project scope is posted on SAM.gov. The Government is seeking approval to post presentation information. Decision may take up to 30 days. If approved, the slides will be posted on SAM.gov. By: Daphne Ross; NAU Project Management; (+4961197442064) On: Jan 22 2026

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11676024	Contracting	N/A	N/A	N/A
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Phased rollout of Cybersecurity Maturity Model Certification (CMMC) began 10 NOV 2025. During the Virtual Industry Day for this project on 14 JAN 2026, it was mentioned that a minimum of CMMC Level 2 would be required for this project. Please confirm that all prime contractors, subcontractors and suppliers (regardless of tier), involved in this project will be required to have a minimum of CMMC Level 2 in order to access documents and perform work on this project.

By: John Cowan; Hensel Phelps; (4432501498). On: Jan 21 2026.  Forward request by email.

1-0 Evaluation Concurred. CMMC Level 2 is the highest level enforced at this time but could change. For more information, please check the following website: <https://dodcio.defense.gov/cmmc/Resources-Documents/> By: Daphne Ross; NAU Project Management; (+4961197442064) On: Jan 22 2026

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Report Complete

Controlled Unclassified Information (CUI) Only

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